City of TORRANCE California

Date: August 11, 2026

To: Honorable Mayor and Members of the City Council

From: Michelle Ramirez, Community Development Director

By: Austin Lujan, Planning Assistant | ALujan@TorranceCA.gov

Subject: Planning Commission and Community Development – Conduct Public Hearing to Consider Appeal of Planning Commission's Denial of Minor Hillside Exemption (MHE25-00051) to Allow a Proposed 694 Square Foot Attached Garage Located on the North Side of an Existing One-Story Single-Family Residence, on Property Located within the Hillside Overlay (R-H) in the Single Family Residential District (R-1) Zone at 439 Via Linda Vista; (APN 7514-012-028), Adopt **RESOLUTION** and Determine a Categorical Exemption from the California Environmental Quality Act (CEQA). Expenditure: None.

RECOMMENDATION

Recommendation of the Planning Commission and Community Development Director that City Council:

1. Conduct a public hearing; and
2. Determine a Categorical Exemption for the project in accordance with Guidelines for Implementation of the California Environmental Quality Act (CEQA); Article 19, Section 15301 – Existing Facilities; and
3. Approve a Minor Hillside Exemption (MHE25-00051) for a proposed 694 square foot attached garage located on the north side of an existing one-story single-family residence, on property located within the Hillside Overlay (R-H) in the Single-Family Residential District (R-1) Zone at 439 Via Linda Vista; and
4. Adopt **RESOLUTION** to approve a Minor Hillside Exemption (MHE25-00051) for a proposed 694 square foot attached garage located on the north side of an existing one-story single-family residence, on property located within the Hillside Overlay (R-H) in the Single-Family Residential District (R-1) Zone at 439 Via Linda Vista.

FUNDING

None required.

DISCUSSION

The project applicant, Binh Wong (Samuel and Maria Gong), requests approval of MHE25-00051 to allow a new 694 square foot attached garage on the north side of the residence on property located within the Hillside Overlay (R-H) in the R-1 Zone. The applicant proposes to demolish their 401'-6" existing attached garage and construct an attached 694 square foot attached garage. Staff acknowledges that an attached second story Accessory Dwelling Unit (ADU) is also

proposed, however, it is not subject to discretionary review. The development standards of the R-1 Zone as well as the Hillside Overlay (R-H) are applicable to the project.

Analysis
The development standards of the R-1 Zone as well as the planning and design provisions of the Hillside Overlay (R-H) are applicable to the project, and therefore require discretionary review and approval of the following entitlements:

- Minor Hillside Exemption to allow an addition in the Hillside Overlay (R-H)

Background
On January 21, 2026, the Planning Commission held a public hearing to consider the proposed residential project. During the hearing, the applicant presented an overview of the project; however, Commissioners expressed concern that the plans appeared incomplete, noting the absence of updated renderings and a standalone roof plan for the garage. Commissioners also highlighted the difficulty of evaluating the project while being instructed not to consider the separately proposed ADU. Following public testimony and deliberation, the Commission voted unanimously (7-0) to deny the project, identifying findings E, F, G, H, I, and J, as not being met and that the project lacked sufficient information and advised the applicant to revise the project.

City Council Appeal
The appellants challenge the Planning Commission's denial of the proposed 694 square-foot attached garage. They assert that the project includes a sufficient roof plan, is compatible with the surrounding neighborhood, and does not create adverse view, light, air, or privacy impacts. These issues were outlined in the appeal submitted to the City Clerk's Office on March 3, 2026 (Attachment 4).

1. Roof Plan
   During the January 21, 2026 Planning Commission meeting, Commissioners noted that the submitted project plans did not include a roof plan. The appellants clarify that a roof plan was included in the original submittal, specifically on page three of the provided plans and within the general notes. The appellants state that the plan satisfies all applicable R-1 development standards.
2. Neighborhood Compatibility
   The appellants state that the proposed garage meets or exceeds all height and setback requirements. They argue that the structure will not result in adverse view, light, air, or privacy impacts on adjacent properties and cite the staff report and photographic evidence to support their position. Based on staff's review, the proposed garage remains consistent with standard development patterns in the surrounding Hillside Overlay (R-H) area.
3. Consideration of the ADU

The appellants state that the Planning Commission's denial was influenced by references to a proposed ADU that was not part of the scope of work before the Commission. They assert that the ADU was not under consideration and therefore should not have factored into the decision. Staff concurs that the ADU is outside the scope of the Minor Hillside Exemption request.

4. Compliance With State Housing Laws
   The homeowners also provide context regarding potential alternatives for the ADU should the garage not be approved. While this information is not directly related to the Minor Hillside Exemption, it demonstrates the applicants' potential plan if the Minor Hillside Exemption were to be denied.

In conclusion, staff finds that the appellants, Samuel and Maria Gong, provide a thorough and defensible justification for the proposed garage. The project meets all R-1 development standards and does not present identifiable impacts to views, privacy, light, or air. The ADU referenced during Commission deliberations is not part of the current entitlement request and should not be considered in evaluating the garage proposal. Staff recommends that the City Council uphold the appeal and approve the Minor Hillside Exemption for the proposed attached garage at 439 Via Linda Vista.

General Plan Land Use Designation

The site has a General Plan Land Use Designation of Low Density Residential (R-LO). Development in the R-LO land use designation is characterized generally by detached one and two-story single-family residences on individual lots forming a cohesive neighborhood. The proposed one and two-story additions to an existing single-family residence are consistent with the land use designation. The existing residence is consistent with the R-LO designation. The proposed new attached garage is allowed with the approval of an MHE.

Zoning Designation and Adjacent Land Uses

The project site is designated as R-1 Zone. The subject property is surrounded by the following land uses and zoning designations, summarized below.

NORTH:	R-1 Hillside Overlay (R-H),	One-Story Single-Family Residences
EAST:	R-1 Hillside Overlay (R-H),	One and Two-Story Single-Family Residences
SOUTH:	R-1 Hillside Overlay (R-H),	One -Story Single-Family Residences
WEST:	R-1 Hillside Overlay (R-H),	One-Story Single-Family Residences

Project Site

The subject property is situated on a trapezoidal shape lot measuring 6,736 square feet. The property is orientated towards the west, on the northeast side of Via Linda Vista. The property slopes up from the sidewalk with a relatively flat building pad, then continues to slope up in the rear. Via Linda Vista slopes north to south, with the building pad of the adjacent residences situated considerably above and below the subject property. The residences that abut the rear along Via Los Miradores and Calle Cabrillo are situated significantly higher than the subject property.

Building Setbacks

The proposed addition is located along the north side of the residence and will have a front yard setback of 20', a side yard setback of 5'-8", and a rear yard setback of 15', all which meet or exceed the minimum code required setbacks of the R-1 Zone.

Building Height
The proposed attached garage measures 10'-½" feet in height and is well below the allowable height to qualify for the MHE. No changes are proposed to the overall roof height of the existing residence. Staff notes for properties located within the Hillside Overlay (R-H); new construction is allowed up to 14' in height with the approval of the Community Development Director.

Building Floor Plan
The proposed attached garage will measure at 694 square feet. The garage will be attached to north side of the main residence with the garage door facing west. The remainder of the single-family residence will remain as existing.

Statistical Information

Lot Area	6,719 square feet
Existing Residence	1,891 square feet
Proposed Lot Coverage	40%
Proposed Floor Area Ratio	41%
Proposed Garage 694 square feet	694 square feet

Hillside Overlay
On August 29th, 2025, staff send out notification letters to the immediate surrounding neighbors of 439 Via Linda Vista. Staff received four individual letters of correspondence.

In the Hillside Overlay (R-H), residential development is permitted with the approval of the Community Development Director provided the requirements listed in Section 91.41.7 of the Torrance Municipal Code are met. To determine the proposed development will not have a significant adverse impact on the view, light, air, and privacy of properties in the vicinity, and there is no significant public controversy thereon, notices were mailed on August 29, 2025, to the registered address of the adjacent property owners at 435, 436, 440, and 441 Via Linda Vista, 126 Calle Cabrillo, and 130 Via Los Miradores. (Attachment 2). The notices provide a brief project description, contact information, and availability to review the project plans and comment period.

In response to the notice, four comment letters were received from the adjacent properties to the north and east, that expressed concerns regarding potential view and privacy impacts from the proposed attached garage (Attachment 3). The neighbors described the potential build creating a domino effect within the area and diminish the charm and character of the neighborhood. The letters of correspondence mention the creation of an ADU; however, staff notes that Minor Hillside Exemption process does not pertain to ADU's as they are exempt from discretionary review per State law.

In the judgement of staff, the proposed attached garage will not have an adverse view impact as the adjacent neighbors to the east sit significantly higher than the subject property. Additionally, the neighbor to the north will also not have adverse privacy impacts as the proposed attached garage has vegetation along the property line, which provides privacy for the two properties.